

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY****HECTOR PALERMO,**

Plaintiff,

-against-

**THE CITY OF NEW YORK,
COMMISSIONER RAYMOND KELLY,**in his official
capacity,**OFFICER LAWRENCE SANCHEZ, in his official and
individual capacities,**
and**OFFICER TORRES, f/n/u, in his individual and official
capacities.**

Defendants.

Index No.: _____

SUMMONSTO: THE CITY OF NEW YORK
Attn.: Corporate Counsel
100 Church Street, 5th Floor
New York, New York 10007

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is the place where the torts were committed, which is within Bronx County.

Dated: New York, New York
February 12, 2014THE LAW OFFICES OF DANIEL FELBER
Counsel for Plaintiff Hector Palermo

By: _____

Benjamin N. Leftin

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New York, New York 10017

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**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

-----X
HECTOR PALERMO,

Plaintiff,

-against-

**THE CITY OF NEW YORK,
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COMPLAINT

Plaintiff Hector Palermo ("Plaintiff" or "Palermo"), by his attorneys, The Law Offices of Daniel Felber, complaining of Defendants The City of New York ("The City"), Commissioner Raymond Kelly ("Kelly"), Officer Lawrence Sanchez ("Sanchez"), and Officer Torres, f/n/u ("Torres", and, collectively with The City, Kelly and Sanchez, "Defendants"), alleges as follows:

NATURE OF THE ACTION

1. This is an action against The City of New York and members of the New York City Police Department for damages sustained by their deprivation of Plaintiff's Constitutional rights, including false arrest and malicious prosecution.

THE PARTIES

2. Plaintiff Hector Palermo is a resident of the State of New York and Bronx County.

3. The City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized under the laws of the State of New York to maintain a police department, The New York City Police Department ("NYPD"), which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The City assumes the risks incidental to the maintenance of a police force and the employment of police officers. The NYPD's operations include the operations as described herein.

4. Defendant Raymond Kelly was, at all times relevant herein, the Police Commissioner for the City, and was responsible for the policies, practices and/or customs of the NYPD, including in the areas of hiring, training, supervision and discipline of police officers employed by The City. Defendant Kelly is sued in his official capacity.

5. Officer Lawrence Sanchez is a police officer employed by The City and, at all relevant times herein, under the supervision and direction of Defendant Kelly. Defendant Sanchez is sued in his official and individual capacities.

6. Officer Torres, first name unknown, is a police officer employed by The City and, at all relevant times herein, under the supervision and direction of Defendant Kelly. Defendant Torres is sued in his official and individual capacities.

7. At all times relevant herein, Defendants Kelly, Sanchez and Torres acted under color of state law in the course and scope of their duties and functions as agents, employees, and officers of The City in engaging in the conduct herein. At all times relevant herein, Defendants Kelly, Sanchez and Torres acted for and on behalf of The City with the power and authority vested in them as agents, employees, and officers of The City and incidental to the lawful pursuit of their duties as such. At all times relevant herein, Defendants Sanchez and Torres acted pursuant to clearly established policies and customs enacted by The City and Defendant Kelly.

JURISDICTION AND VENUE

8. This Court has jurisdiction over the parties, in that, on information and belief, the parties are residents of, and have significant contact with, the State of New York.

9. Venue in this Court is appropriate, in that the events giving rise to Plaintiff's claims occurred in Bronx County.

10. Plaintiff filed a Notice of Claim with The City on May 3, 2013, and has satisfied all conditions precedent to bringing this action.

FACTUAL ALLEGATIONS

11. On or about April 9, 2013, at approximately 10:30 pm, Hector Palermo, who is an Hispanic male, and a friend were approached by Officers Torres and Sanchez at or near the corner of Faille Street and Lafayette, Bronx County.

12. At the time of the stop, neither Palermo nor his friend was engaged in any criminal activity.

13. Officer Torres menacingly approached Palermo while putting on his gloves. Palermo asked why Officer Torres was approaching him, and Officer Torres replied that it was because Palermo was "standing on the fucking corner."

14. Officer Sanchez then proceeded to ask both Palermo and his friend for their identification. When Palermo reached into his pocket for his identification, Torres asked him why he was reaching into his pocket, grabbed him by the arm and shoulder, and forcefully pushed him into the back of the officers marked police vehicle.

15. Palermo asked Officers Torres and Sanchez why he was being treated this way, and Officer Torres responded by loosening his hold on Palermo and punching him in the face.

16. Palermo, fearing for his safety, retreated from the officers and continued to ask why he was being assaulted, at which point both Officers Torres and Sanchez violently charged at him.

17. Torres was grabbing at Palermo while Sanchez was swinging his clenched fists at Palermo and hitting him about the face and torso.

18. Palermo continued to retreat from Torres and Sanchez when Officer Sanchez drew his baton and hit Palermo in the torso and legs multiple times.

19. While Palermo was defending himself from the blows of Officer Sanchez' baton, Palermo became pinned to a fence, whereupon Officer Torres sprayed mace directly in Palermo's face while using his free hand to rub the mace directly into Palermo's nose, mouth and eyes where it would cause the greatest pain and suffering .

20. Ultimately, several more police officers arrived on the scene, and Palermo was thrown to the ground – suffering numerous additional blows – handcuffed, and taken into custody.

21. On the walk to the police vehicle, and while Palermo's hands were cuffed behind his back, Officer Sanchez again punched Palermo in the face with his clenched fist.

22. Officers Sanchez and Torres took Palermo to the 41st Precinct, where Palermo requested medical attention for the injuries he sustained from the attack, including difficulty breathing as a result of the macing. Notwithstanding his acute injuries, Palermo waited approximately an hour and a half for medical attention after arriving at the precinct.

23. After receiving only cursory medical attention at the precinct, Palermo was taken to the hospital where he underwent x-rays of his shoulders. Palermo was given medication for swelling and acute pain.

24. Palermo was taken from the hospital by the officers and driven to central booking at 161st Street, Bronx County, then taken back to the 41st Precinct, before returning to central booking where he appeared before a judge for his arraignment upon a criminal complaint, docket # 2013BX0883.

25. Palermo was released on his own recognizance by the presiding judge, who also recorded Palermo's injuries on the record.

26. On August 2, 2013, Palermo's criminal case was adjourned in contemplation of dismissal.

27. As a direct result of the foregoing, Palermo suffered pain and physical injury to his face, chest, back, and legs, including lacerations, swelling, and severe bruising, which prevented Palermo from working at his job for a month.

28. As a further direct result of the foregoing, Palermo has suffered harm to his reputation and severe emotional distress.

29. On information and belief, Defendants Sanchez and Torres were acting pursuant to a well-established policy and custom of the NYPD, The City, and Kelly whereby racial minorities, including Palermo, are routinely and indiscriminately targeted for stops, searches, arrests and prosecution.

30. On information and belief, Defendants Sanchez and Torres were further acting pursuant to a well-established policy and custom of the NYPD, The City, and Kelly whereby officers are rewarded for making more arrests, and are disciplined for failing to meet arrest quotas.

31. On information and belief, The City and Kelly have directly and proximately established and created the afore-mentioned policies and customs by failing to properly monitor

NYPD officers, and overtly and tacitly encouraging NYPD officers to follow these policies and customs.

32. On information and belief, the aforementioned unlawful policies and customs are evidenced by, *inter alia*, the NYPD's well-documented history of conducting suspicion-less stops, arrests, and prosecutions of racial minorities, as revealed by the NYPD's own records and statistics, including UF-250 forms, which catalog multitudes of stops and frisks, among other interactions, which resulted in no criminal charges being filed. The aforementioned unlawful policies and customs have also been revealed through a series of recent litigations, the evidence adduced therein and all settlements, judgments and remedial actions resulting therefrom, including *Daniels, et al. v. The City of New York, et al.*, 99 Civ. 1695 (SDNY) and *Floyd, et al. v. City of New York, et al.*, 08 Civ. 01034 (SDNY).

33. Defendants searched, assaulted, arrested, imprisoned and prosecuted Palermo because of their biases and training, and in contravention of the evidence known and available to them in violation of his rights under the Constitutions of New York State and the United States of America.

34. All of the Defendants acted with deliberate indifference to Palermo's rights.

FIRST CAUSE OF ACTION

(Against All Defendants: Violations of the New York State Constitution)

35. Plaintiff repeats and alleges each and every above allegation as if fully set forth herein.

36. Defendants have implemented, enforced, encouraged and sanctioned a policy, practice and/or custom of targeting racial minorities for arrest, search, imprisonment and prosecution without probable cause.

37. Defendants unlawfully violated Palermo's rights under the New York State Constitution, §§ 1, 7, 11 and 12, by assaulting, arresting, searching, imprisoning, and prosecuting Palermo without probable cause nor any reasonable justification.

38. Accordingly, Plaintiff is entitled to recover from Defendants compensatory damages, in addition to reasonable costs, disbursements, attorney's fees incurred in prosecuting this action, and punitive damages.

SECOND CAUSE OF ACTION

(Against All Defendants: Violations of the United States Constitution; 42 U.S.C. § 1983)

39. Plaintiff repeats and alleges each and every above allegation as if fully set forth herein.

40. Defendants have implemented, enforced, encouraged and sanctioned a policy, practice and/or custom of targeting racial minorities for arrest, search, imprisonment and prosecution without probable cause.

41. Defendants unlawfully violated Palermo's rights under the United States Constitution by assaulting, arresting, searching, imprisoning, and prosecuting Gillian without probable cause nor any reasonable justification.

42. Accordingly, Plaintiff is entitled to recover from Defendants compensatory damages, in addition to reasonable costs, disbursements, attorney's fees incurred in prosecuting this action, and punitive damages.

THIRD CAUSE OF ACTION

(Against All Defendants: Unlawful Imprisonment under New York State Common Law)

43. Plaintiff repeats and alleges each and every above allegation as if fully set forth herein.

44. Defendants, both directly and proximately, caused and/or are alternatively liable for, Palermo's unlawful arrest and imprisonment.

45. Accordingly, Plaintiff is entitled to recover from Defendants compensatory damages, in addition to reasonable costs, disbursements, attorney's fees incurred in prosecuting this action, and punitive damages.

FOURTH CAUSE OF ACTION

(Against Defendants Sanchez and Torres:
Assault and Battery under New York State Common Law)

46. Plaintiff repeats and alleges each and every above allegation as if fully set forth herein.

47. Defendants Sanchez and Torres intentionally and without justification placed Palermo into a reasonable fear for his safety and physically attacked Palermo with their fists and dangerous instruments, causing fear and injury.

48. Accordingly, Plaintiff is entitled to recover from Defendants Sanchez and Torres compensatory damages, in addition to reasonable costs, disbursements, attorney's fees incurred in prosecuting this action, and punitive damages.

FIFTH CAUSE OF ACTION
(Against Defendants Sanchez and Torres:
False Imprisonment under New York State Common Law)

49. Plaintiff repeats and alleges each and every above allegation as if fully set forth herein.

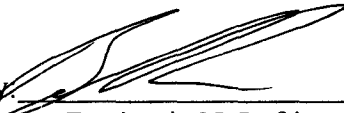
50. Defendants Sanchez and Torres, without any cause nor reasonable justification, took hold of, handcuffed, and imprisoned Palermo, thereby depriving him of his freedom.

51. Accordingly, Plaintiff is entitled to recover from Defendants Sanchez and Torres compensatory damages, in addition to reasonable costs, disbursements, attorney's fees incurred in prosecuting this action, and punitive damages.

WHEREFORE, based on the foregoing, Plaintiff respectfully requests that this Court enter judgment against Defendants awarding Plaintiff the relief to which he is entitled.

Dated: New York, New York
February 7, 2014

THE LAW OFFICES OF DANIEL FELBER
Counsel for Plaintiff Hector Palermo

By: 

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